

ELIZABETH II**1988 CHAPTER xxxiii**

An Act to provide for the alleviation of flooding in parts of the borough of Ashford within the catchment areas of the Great Stour river and the East Stour river; to authorise the Southern Water Authority to construct works and to acquire lands; to relieve that Authority of certain obligations concerning the Southease bridge over the river Ouse in the county of East Sussex and to modify the powers of the Authority in relation to the Medway navigation; to confer further powers on the Authority; and for other purposes. [20th December 1988]

WHEREAS the Southern Water Authority (hereinafter in this Act referred to as "the Authority") were constituted in pursuance of the Water Act 1973 as the Authority responsible for all aspects of water conservation, the supply of water, the prevention of pollution, the provision of public sewerage and sewage disposal, land drainage, fisheries and water recreation within an area which includes the catchment areas of the Great Stour river and the East Stour river (hereinafter in this Act referred to as "the rivers"):

1973 c. 37.

And whereas during and after periods of heavy rainfall there is extensive flooding of the land adjacent to the rivers and in particular of the land in the parishes of Hothfield, Great Chart with Singleton, Smeeth, Aldington and Bonnington, Mersham, Sevington and Kingsnorth in the borough of Ashford in the county of Kent (hereinafter in this Act referred to as "the county") and further downstream:

PART I
—cont.

And whereas the flooding of such land could be substantially alleviated by controlling the flows of the rivers and by storing temporarily part of such flows in flood storage areas adjoining the rivers and it is expedient and in the public interest to authorise the Authority to acquire the land for the provision of such areas and in times of high flows to control the flows of the rivers and to store temporarily parts of such flows in such areas:

And whereas it is expedient that the Authority should be empowered to construct the works which they are by this Act authorised to construct and to acquire lands and easements for such works:

And whereas it is expedient that the Authority should be relieved of certain obligations concerning the Southease bridge over the river Ouse in the county of East Sussex and that the powers of the Authority relating to the Medway navigation should be modified as in this Act provided:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines, situations and levels of the works authorised by this Act, and a book of reference to such plans containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers, of the lands which may be acquired or used compulsorily under the powers of this Act, have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office, House of Commons, and with the proper officer of the county council of the county of Kent and such plans, sections and book of reference are in this Act respectively referred to as the deposited plans, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Southern Water Authority Act 1988.

Interpretation.

2.—(1) In this Act, unless the context otherwise requires—

1961 c. 33.

“the Act of 1961” means the Land Compensation Act 1961;

1963 c. 38.

“the Act of 1963” means the Water Resources Act 1963;

1965 c. 56.

“the Act of 1965” means the Compulsory Purchase Act 1965;

1976 c. 70.

“the Act of 1976” means the Land Drainage Act 1976;

“the Authority” means the Southern Water Authority;

“the county” means the county of Kent and “the county council” means the council of the county;

“enactment” includes any order, byelaw, regulation, scheme or other instrument having effect by virtue of an enactment;

“new rights” means rights to be created in favour of the Authority including—

(a) rights to flood land or to flood land to a greater depth or for a longer period than it would have been flooded but for the construction or operation of the works;

PART I
—cont.

- (b) rights restrictive of the user of land;
and “new right” shall be construed accordingly;
“the Minister” means the Minister of Agriculture, Fisheries and Food;
“the rivers” means the Great Stour river and the East Stour river and
“river” means either of them;
“telecommunication apparatus”, “the telecommunications code” and
“telecommunications code system” have the same meanings as in
Schedule 4 to the Telecommunications Act 1984;
“the Third Schedule” means the Third Schedule to the Water Act 1945;
“the tribunal” means the Lands Tribunal;
“watercourse” has the same meaning as in the Act of 1976;
“the works” means the works authorised by Part II (Works) of this Act.

1984 c. 12.

1945 c. 42.

(2) References in this Act to reference points shall be construed as references to National Grid reference points.

(3) Unless the context otherwise requires, any reference in this Act to a distance, length or direction in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after that reference and any reference in this Act to a work identified by the number of such work or by such number and a letter of the alphabet shall be construed as a reference to the work of that number or of that number and letter, as the case may be, authorised by this Act.

3.—(1) (a) For the purposes of this Act, sections 6, 83 and 85 of the Third Schedule shall apply to the Authority and the works.

Application of enactments.

(b) The said sections are hereby incorporated with this Act and, as so incorporated, shall have effect as if for the reference therein to undertakers there were substituted a reference to the Authority.

(2) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof are hereby incorporated with this Act and, as so incorporated, shall have effect as if—

1845 c. 20.

(a) for the words “the period by the special Act limited for the completion of the railway” there were substituted the words “the period of eight years from the respective dates of commencement of the construction of the works authorised by the special Act”;

(b) the expression “the company” meant the Authority;

(c) the expression “the railway” meant the works and “the centre of the railway” meant the centre line of any such works respectively.

(3) (a) Part I of the Act of 1965 (except section 4, section 27, and paragraph 3 (3) of Schedule 3 thereof), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land and new rights under this Act as it applies to a compulsory purchase to which Part II of the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

1981 c. 67.

(b) In section 11 (1) of the Act of 1965, as so applied, for the words “fourteen days” there shall be substituted the words “three months”.

(c) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

1845 c. 18.

PART II

WORKS

Power to
construct works.

4.—(1) (a) Subject to the provisions of this Act the Authority may, in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown upon the deposited sections, make and maintain in the borough of Ashford in the county the whole or part of all or any of the works hereinafter described, together with all necessary works and conveniences connected therewith:—

In the parishes of Aldington and Bonnington and Smeeth—

Work No. 1 A flood retention embankment incorporating an emergency spillway and crossing the East Stour river and the Aldington Dyke, commencing at reference point TR0671 3828 and terminating at reference point TR0665 3748.

In the parish of Smeeth—

Work No. 1A An access road, commencing by a junction with Goldwell Lane (classified road B2069) at reference point TR0672 3834 and terminating at the commencement of Work No. 1.

Work No. 2 A pipe fitted with a valve or valves in the bed of the East Stour river under Work No. 1, commencing 10 metres upstream of Work No. 1 and terminating 10 metres downstream of that work.

Work No. 3 A diversion structure in the bed and banks of the East Stour river, commencing upstream of Work No. 1 at reference point TR0675 3819 and terminating at reference point TR0673 3816.

In the parishes of Aldington and Bonnington and Smeeth—

Work No. 4 A diversion of the East Stour river including a controlling culvert through Work No. 1, commencing at Work No. 3 and terminating by a junction with the Aldington Dyke at reference point TR0655 3786.

Work No. 5 A widening and improvement of the Aldington Dyke, commencing at the termination of Work No. 4 and terminating at the confluence of the Aldington Dyke with the East Stour river at reference point TR0619 3807.

Work No. 6 A diversion of the Aldington Dyke, commencing at reference point TR0682 3774 and terminating by a junction with Work No. 4 at reference point TR0669 3793.

Work No. 7 A berm to protect the railway embankment on its north side, incorporating extensions of existing culverts carrying watercourses under the embankment, commencing at reference point TR0694 3843 and terminating at reference point TR0840 3812.

Work No. 7A An access road, commencing by a junction with Church Lane at reference point TR0812 3831 and terminating at Work No. 7 at reference point TR0811 3818.

Work No. 8 A berm to protect the railway embankment on its south side, incorporating extensions of existing culverts carrying watercourses under the embankment, commencing at reference point TR0690 3836 and terminating at reference point TR0823 3812.

In the parish of Smeeth—

- Work No. 8A An access road, commencing by a junction with Work No. 1A at reference point TR0673 3834 and terminating at the commencement of Work No. 8.

PART II
—cont.

In the parishes of Aldington and Bonnington and Smeeth—

- Work No. 9 A diversion of the East Stour river, commencing at reference point TR0772 3815 and terminating at reference point TR0752 3819.

- Work No. 10 A diversion of the Pleasance Dyke, including extensions of the existing culvert under the railway embankment, commencing at reference point TR0781 3827 and terminating by a junction with Work No. 9 at reference point TR0767 3816.

In the parish of Aldington and Bonnington—

- Work No. 11 A diversion of the East Stour river, including a new bridge under Church Lane, commencing at reference point TR0827 3810 and terminating at reference point TR0807 3812.

In the parishes of Hothfield and Great Chart with Singleton—

- Work No. 12 A flood retention embankment, incorporating a controlling culvert or culverts and an emergency spillway and crossing the Great Stour river, commencing at reference point TQ9685 4352 and terminating at reference point TQ9738 4384.

In the parish of Hothfield—

- Work No. 12A An access road, commencing by a junction with Godinton Park Road (classified road C154) at reference point TQ9753 4388 and terminating at the termination of Work No. 12.

- Work No. 13 A diversion of the Pig Brook, commencing at reference point TQ9713 4374 and terminating by a junction with the Great Stour river five metres upstream of the controlling culvert of Work No. 12.

- Work No. 14 A retaining embankment, commencing at reference point TQ9603 4359 and terminating at reference point TQ9638 4352.

- Work No. 15 A protective embankment or walling, commencing at reference point TQ9587 4372 and terminating at reference point TQ9594 4371.

- Work No. 15A An access road incorporating part of an existing farm road, commencing by a junction with Bethersden Road (classified road C87) at reference point TQ9595 4373 and terminating at the commencement of Work No. 15.

- Work No. 15B A diversion of the Great Stour river, commencing at reference point TQ9585 4388 and terminating at reference point TQ9598 4386.

- Work No. 16 A protective embankment or walling, commencing at reference point TQ9648 4420 and terminating at reference point TQ9635 4421.

- Work No. 16A A diversion and raising of the said Bethersden Road, commencing at reference point TQ9619 4415 and terminating at reference point TQ9651 4425.

- Work No. 16B A drain, partly culverted, commencing at reference point TQ9652 4425 and terminating in an existing ditch at reference point TQ9624 4417.

PART II
—cont.

Work No. 17 A storm water sewer incorporating a pumping station, commencing at reference point TQ9633 4413 within Work No. 16 and passing under Work No. 12 and terminating by an outlet into a channel tributary of the Great Stour river at reference point TQ9709 4355.

Work No. 18 A storm water sewer incorporating a pumping station, commencing at reference point TQ9592 4380 within Work No. 15 and terminating by a junction with Work No. 17 at reference point TQ9689 4374.

Work No. 18A An access road, commencing by a junction with the said Bethersden Road at reference point TQ9600 4387 and terminating at the termination of Work No. 18.

(b) In this subsection “the railway embankment” means the embankment on which the railway of the British Railways Board between Ashford and Folkestone is constructed.

(2) Without prejudice to the other provisions of this Act, the Authority may on the lands within the limits of deviation shown on the deposited plans for Works Nos. 1, 7, 8, 12, 14, 15, 16 and 16A make and maintain borrow pits with such dimensions and in such manner as they may consider expedient in connection with the construction and use of the works specified in subsection (1) above.

(3) Notwithstanding anything to the contrary in this Act or shown on the deposited plans or the deposited sections, but without prejudice to the provisions of section 6 (Power to deviate) of this Act the Authority may, subject to the approval of the Minister and the Secretary of State, construct the whole or any part of Works Nos. 2, 3, 8A, 12, 12A, 13, 15, 16 and 16B within the limits of deviation shown on the deposited plans in accordance with dimensions and a description other than the dimensions and description shown on the deposited plans and the deposited sections or set out in subsection (1) above.

(4) The Authority may from time to time alter, replace, repair or renew any of the works.

(5) The new bridge forming part of Work No. 11 and any related works to Church Lane and Work No. 16A shall, when completed and unless otherwise agreed, be maintained by and at the expense of the highway authority.

Subsidiary
works.

5.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans, the Authority in connection with or for the purposes of the works may—

- (a) make junctions and communications between any of those works and any watercourses and any existing streets, roads, droves, ways, bridges and footpaths;
- (b) make, provide and maintain all necessary and convenient walls, banks, embankments, borrow pits, piling, fences, facilities for watering cattle and other animals, culverts, drains, intakes, syphons, watercourses, weirs, sluices, screens, mattresses, pitching, roads, bridges, footpaths, and all such mains, pipes, cables, wires, meters, pumps, machinery, radio equipment, aerials, and other works and appliances as may be required;
- (c) raise, widen, lengthen, alter and reconstruct the bridges over any watercourses widened, deepened, strengthened, straightened or diverted under the powers of this Act and the approaches to such bridges and strengthen, underpin and deepen the piers, arches and

other supports and the foundations thereof without acquiring the said bridges or any interest therein;

- (d) stop up and discontinue so much of the watercourses shown on the deposited plans as will be rendered unnecessary by reason of the execution of the works;
- (e) dispose of spoil or other material excavated in the execution of the works;
- (f) execute any works or abstract water for the protection of any adjoining lands, buildings or structures;
- (g) remove, alter, divert or stop up any drain, soakaway, septic tank, cesspit, sewer or watercourse, the Authority providing a proper substitute before interrupting the flow of sewage in or to any drain, soakaway, septic tank, cesspit or sewer or water in any watercourse;
- (h) fell, lop or cut and remove any tree, bush, shrub or other vegetation and carry out planting and landscaping; and
- (i) alter any mains, pipes, wires and other works and apparatus for conveying or transmitting water, gas, electricity or petroleum (as defined in the Petroleum (Consolidation) Act 1928).

PART II
—cont.

1928 c. 32.

(2) In the exercise of the powers conferred by this section, the Authority shall cause as little detriment and inconvenience to any person as circumstances admit and shall pay compensation to all persons for any damage sustained by them by reason of the exercise by the Authority of such powers. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

(3) The powers conferred by this section and section 4 (Power to construct works) of this Act in so far as they authorise the carrying out of any works in, on, over or under any highway shall not be exercised by the Authority without the consent of the highway authority having powers in relation thereto, which consent shall not be unreasonably withheld but may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the highway authority may require, and any question whether such consent is unreasonably withheld or any conditions so imposed are unreasonable shall be determined in relation to any trunk road by the Secretary of State and in relation to any other highway by arbitration:

Provided that such consent shall not be necessary where consent for the carrying out of the works is required by the Public Utilities Street Works Act 1950.

1950 c. 39.

6. The Authority in constructing the works may deviate laterally from the lines or situations of the works as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels shown on the deposited sections to any extent upwards or downwards:

Power to deviate.

Provided that—

- (a) no part of the embankments comprised in or forming part of Works Nos. 1, 12, 14, 15 and 16 shall be constructed at a greater height above the general surface of the ground than that shown on the deposited sections and one metre in addition thereto;
- (b) except for the purpose of crossing over a watercourse, excavation or hollow no pipe authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

PART II
—cont.
Alterations to
main river.

7.—(1) Upon completion in each case of the diversion of the river specified in Works Nos. 3, 4, 5, 9, 11 and 15B the new channel of the river for the length of the diversion shall be treated as part of the main river and the former channel of the river so diverted shall cease to be treated as part of the main river.

(2) The Authority shall from time to time send the main river map (as defined in section 9 (1) of the Act of 1976) of their area to the Minister who shall alter the map to give effect to the provisions of this section and send it back to the Authority.

Certain of
works deemed to
be constructed
under
impounding
licence.

8. Works Nos. 1, 3, 4, 12, 14, 15 and 16 shall be deemed to have been constructed under licences under section 36 of the Act of 1963 granted by the Secretary of State to the Authority and, except as may be otherwise provided by this Act, the provisions of the Act of 1963 relating to licences granted under section 36 of that Act shall apply to the licences deemed by this section to have been granted under that section as they apply to those so granted.

Stopping up
and diversion
of footpaths.

9.—(1) (a) Subject to the provisions of this section (and, except so far as may otherwise be agreed with the highway authority concerned, in the lines or situations shown on the deposited plans) the Authority may stop up and discontinue and may divert or substitute new footpaths for the footpaths described in column 1 of Schedule 1 to this Act in the parishes specified in column 2 of that Schedule to the extent specified in column 3 of that Schedule by reference to the letters shown on the deposited plans.

(b) The Authority may for the purposes of and in connection with the diversion of the footpath numbered AE437 on the map referred to in column (1) of the said Schedule construct a footbridge over the Aldington Dyke and references in this section to a diverted footpath shall in relation to the said footpath be construed as including any footbridge over the Aldington Dyke constructed under this paragraph.

(2) (a) No part of a footpath shall be stopped up or treated as diverted under the powers of this section until the highway authority concerned are satisfied that the diversion or new footpath to be substituted therefor (or, in the case of the footpath numbered AE434 on the map referred to in column 1 of Schedule 1 to this Act, the diversion or new footpath to be substituted for part of the footpath numbered AE435 on that plan) has been completed in accordance with their reasonable requirements and is open for public use or, in the case of any difference between the Authority and the highway authority as to whether the said requirements have been complied with or as to their reasonableness, until the matter in dispute has been determined by arbitration:

Provided that the Authority shall not be required under this section to construct or complete any diversion or new footpath to a greater width or better standard than the footpath for which such diversion or new footpath is substituted.

(b) Before referring a matter to arbitration under paragraph (a) above, the Authority shall give to the highway authority seven days' notice of their intention so to do.

(3) As from the date of completion to the satisfaction of the highway authority of any diversion or new footpath or as from the date of the determination by arbitration of any difference under subsection (2) above (as the case may be), all rights of way over or along the portion of the footpath so stopped up shall be extinguished and the Authority may appropriate and use, for the purposes of the works authorised by this Act, the site and soil thereof so far as they are owners of the land on both sides thereof.

(4) Any footpath diverted (including its bridges) under the powers of this Act shall be repairable by the authority or person by which or by whom it was repairable before its diversion and be subject to the same public rights of way as were exercisable over the footpath before its diversion.

PART II
—cont.

10.—(1) Subject to the provisions of this Act, the Authority during and for the purpose of the execution of any of the works may temporarily stop up and divert and interfere with any watercourse or any road or footpath and may for any reasonable time divert the traffic from any such road or footpath and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road or footpath from passing along and using the same.

Temporary
stoppage of
watercourses,
roads and
footpaths.

(2) Reasonable access shall be provided for foot-passengers, with or without animals, bona fide going to or from any such land, house or building.

(3) The powers of this section shall not be exercised with reference to any road or footpath without the consent of the highway authority having powers in relation thereto and, in the case of a road or footpath which is vested in any person other than the highway authority, that person, and any such consent may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the highway authority or other person may think fit to impose but shall not be unreasonably withheld, and any question whether any such consent is unreasonably withheld or whether any conditions are reasonable shall be determined by arbitration.

(4) The powers of this section shall not be exercised with reference to any watercourse which is under the jurisdiction of an internal drainage board without the consent of the board concerned and any such consent may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the board concerned may think fit to impose but shall not be unreasonably withheld, and any question whether any such consent is unreasonably withheld or whether any conditions are reasonable shall be determined by the Minister.

(5) The exercise of the powers of this section in relation to a road or footpath shall not affect the rights of the operator of any telecommunications code system for the purposes for which the apparatus is used to keep installed, inspect, maintain, adjust, repair or alter telecommunication apparatus or to break up or open, or tunnel or bore under, that road or footpath for any of those purposes.

11. Before breaking up or otherwise interfering with any road in connection with the construction of any of the works, the Authority shall (except in a case of emergency) give 14 days' notice to the chief officer of police of their intention so to do.

Notice to
police.

12.—(1) Where under this Act the Authority are authorised to stop up, divert or interfere with a road or footpath, or portion thereof, they may enter into, and carry into effect, agreements with the highway authority or the persons having the charge, management or control of the road or footpath, as the case may be, concerning the construction, or a contribution towards the expense of the construction of any new road or footpath to be made under this Act, and concerning any other matters relating thereto.

Agreements
with highway
authorities.

(2) The Authority may, by agreement with the highway authority or such persons, delegate to them the power of constructing and, in any case where the Authority are responsible for maintaining the same, of maintaining all or any such new road or footpath.

PART II
—cont.

(3) The purposes of this section shall be purposes for which a highway authority may incur expenditure and borrow money.

Diversion of
flow of water
in certain
watercourses.

13.—(1) The Authority may by means of Works Nos. 1, 2 to 7, 8, 9 to 12, 13, 15B, 16B, 17 and 18, and any works constructed in connection therewith divert, abstract, intercept, stop up or otherwise interfere with the waters or the flow of water in the rivers and the Aldington Dyke, Pleasance Dyke and Pig Brook and of or in any other watercourse which may be intercepted by the said works or any of them.

(2) The restriction imposed by subsection (1) of section 23 of the Act of 1963 shall not apply to abstraction of water under subsection (1) above.

Power to
Authority to
improve and
regulate
flow of
watercourses.

14.—(1) (a) Subject to the provisions of this Act, the Authority for the purposes of improving or regulating the flow of any of the watercourses which may require improvement or regulation consequent upon the operation or maintenance of any of the works may—

- (i) widen, narrow, dredge, cleanse and scour the watercourse;
- (ii) reduce or remove any shoals, shelves, banks or other accumulations therein;
- (iii) alter or remove or cause to be altered or removed any weirs, sluices or other impediments or obstructions whatsoever therein or on the banks thereof;
- (iv) alter or reconstruct any culvert or other structure therein or on the banks thereof.

(b) Any spoil or other material dredged or removed in the exercise of the powers of this subsection may be deposited on the banks of the watercourse.

(2) The Authority shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise by the Authority of the powers of this section. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

(3) The powers conferred on the Authority by this section shall not be exercised in relation to a watercourse under the jurisdiction of an internal drainage board except with the consent of the board concerned and any such consent may be given subject to such reasonable terms and conditions (other than a monetary payment as the consideration for the grant of the consent) as the board may think fit but shall not be unreasonably withheld, and any question as to whether any such consent is or is not unreasonably withheld or whether any conditions are or are not reasonable shall be determined by the Minister.

Discharge of
water into
streams.

15.—(1) For the purpose of constructing, altering, replacing, repairing, renewing, cleaning or examining any of the works the Authority may cause the water in any such work to be discharged into any available watercourse and for that purpose may lay and maintain all necessary discharge pipes and apparatus.

(2) Except in a case of emergency the Authority shall not less than 7 days before commencing to discharge water into a watercourse as aforesaid give notice of their intention to the occupier of the land on which the discharge is to be made:

Provided that whenever the Authority propose to discharge water on a number of occasions during a period, the giving by them of a general notice

to that effect, accompanied by such particulars as it is reasonably practicable for them to give, shall constitute sufficient compliance by them with the provisions of this subsection.

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—cont.

(3) In the exercise of the powers conferred by this section the Authority shall do as little damage as may be and shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise of those powers and, for the purposes of this subsection, any extra expenditure which it becomes reasonably necessary for any public authority (including any statutory undertakers within the meaning given in section 329 of the Highways Act 1980) to incur for the purpose of properly discharging their statutory functions shall be deemed to be damage sustained by them. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

1980 c. 66.

(4) (a) The Authority shall take all necessary steps to secure that any water discharged by them under this section shall be as free as may be reasonably practicable from mud and silt, from solid, polluting, offensive or injurious matter and from any matter prejudicial to fish or spawn, or to spawning beds or food of fish, and, if they fail to do so, shall be guilty of an offence.

(b) Sections 46 and 47 of the Water Act 1945 shall apply to any such offence as if it were an offence against that Act.

1945 c. 42.

16.—(1) The Authority may enter into and carry into effect agreements or arrangements with the drainage board of any drainage district or the owners of or other persons interested in any land in or through which the works are or may be constructed or the drainage of which may be affected by the construction of the works for or with respect to the execution of any works or the doing of anything which may be rendered necessary or convenient by reason or in consequence of the exercise of the powers of this Act.

Agreements with
owners of land
and others for
execution of
works.

(2) Any such agreement may provide for the payment by the Authority of or the making of contributions by them towards the cost incurred or to be incurred by any such drainage board, owners or other persons in or in connection with the execution of such last-mentioned works or the doing of any such thing or the payment by the Authority of compensation for any injury suffered by such drainage board, owners or other persons by reason or in consequence of the execution by the Authority of the works.

17.—(1) The Authority may remove any thing in the river or on any land which has been or in the opinion of the Authority is likely to be flooded by the Authority by reason of the construction of the works or otherwise in the exercise of the powers of this Act if the thing is causing or, in the opinion of the Authority, is likely to become an obstruction or impediment to the achievement of the purposes of this Act.

Removal of
obstructions and
debris.

(2) (a) If any thing removed by the Authority under subsection (1) above is so marked as to be readily identifiable as the property of any person, the Authority shall within one month of its coming into their custody give notice, as required by subsection (5) below, to that person and if possession of the thing is not retaken within the period specified in, and in accordance with the terms of, the notice it shall at the end of that period vest in the Authority.

(b) Any thing removed by the Authority under subsection (1) above which is not so marked shall thereupon vest in the Authority.

(3) The Authority may, at such time and in such manner as they think fit, dispose of any thing referred to in paragraph (b) of subsection (2) above and if it is sold the proceeds of sale shall be applied by the Authority in payment

PART II
—cont.

of the expenses incurred by them under this section in relation to the thing, and any balance—

- (a) shall be paid to any person who within three months from the time when the thing came into the custody of the Authority proves to the reasonable satisfaction of the Authority that he was the owner thereof at that time; or
- (b) if within the said period no person proves his ownership at the said time, shall vest in the Authority.

(4) If any thing removed under this section—

- (a) is sold by the Authority and the proceeds of sale are insufficient to reimburse the Authority for the amount of the expenses incurred by them in the exercise of their powers of removal; or
- (b) is unsaleable;

the Authority may recover the deficiency or the whole of the expenses, as the case may be, from the person who was the owner at the time when the thing removed came into the custody of the Authority or who was the owner at the time of its abandonment or loss.

(5) A notice given under paragraph (a) of subsection (2) above shall specify the thing removed and state that upon proof of ownership to the reasonable satisfaction of the Authority possession may be retaken at a place named in the notice within the time specified in the notice, being not less than 14 days after the date when the notice is served.

(6) Sections 111 and 112 of the Act of 1963 shall apply to the exercise by the Authority of the powers of this section and for that purpose the Authority in exercising those powers shall be deemed to be performing one of their functions.

Operation of
works.

18. Subject to the provisions of this Act and notwithstanding anything to the contrary in any other enactment or rule of law, the Authority may, by means of the works, control the flow of water in the rivers and may use and operate for that purpose any valve, screen, controlling culvert or other means of control forming part of or constructed in connection with the works.

Misuse of
controls.

19. Any person who without lawful authority closes or opens any valve, screen, controlling culvert or other means of controlling the river as may form part of or be constructed in connection with the works or in any other way interferes with such controls or the operation thereof shall be liable on summary conviction to a fine not exceeding the statutory maximum or on indictment to a fine:

Provided that a person shall not be guilty of an offence by virtue of this section as respects any act done in an emergency in order to avoid danger to any person.

Regulation of
traffic on
Bethersden Road
and Waterfall
Road.
1984 c. 27.

20.—(1) The Authority shall place, maintain and operate on or near Bethersden Road (classified road No. C87) and Waterfall Road such barriers for preventing or controlling the passage of vehicles and pedestrians along either of the said roads and traffic signs (as defined in section 64 of the Road Traffic Regulation Act 1984) as the highway authority may from time to time direct for warning and regulating the road traffic coming from either direction when the road has been or, in the opinion of the Authority, is likely to be flooded and may for the purpose of such placing or maintenance, open or break up or otherwise interfere with the road.

(2) Sections 111 and 112 of the Act of 1963 shall apply to the performance by the Authority of their duties under this section and for that purpose the Authority in performing those duties shall be deemed to be performing one of their functions.

PART II
—cont.

PART III
LANDS, ETC.

21.—(1) Subject to the provisions of this Act, the Authority may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of—

Power to
acquire lands.

- (a) the works;
- (b) obtaining materials for the construction of the works, or depositing spoil or other material excavated during the construction thereof;
- (c) providing areas for the temporary storage of the flood waters of the rivers and the Aldington Dyke, Pleasance Dyke and Pig Brook;
- (d) obtaining access to the works or to the areas provided for the temporary storage of the flood waters of the rivers and the Aldington Dyke, Pleasance Dyke and Pig Brook;

or otherwise for the purposes of this Act or other purposes connected therewith.

(2) Without prejudice to the powers of section 23 (Power to acquire new rights) of this Act in relation to such land, the Authority shall not acquire compulsorily under the powers of this section any land which is not situated within the limits of deviation shown on the deposited plans.

(3) The Authority may enter upon, take, use and appropriate so much of the subsoil and undersurface of any road delineated on the deposited plans and described in the deposited book of reference and situated within the limits of deviation shown on the deposited plans as may be necessary for the purposes mentioned in subsection (1) above without being required to purchase the same or any right therein or thereunder or to make any payment therefor.

22.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Act of 1965, as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of subsection (1) of section 8 of that Act.

Acquisition of
part only of
certain properties.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, then, if the person on whom the notice is served, within six weeks after the day on which the notice is served on him, serves on the Authority a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the Authority agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within six weeks after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice, or, in the case of part of land consisting of a house together with a park or garden belonging thereto,

PART III
—cont.

without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal the tribunal determines that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Authority are authorised to acquire compulsorily under this Act.

(6) If the Authority agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice whether or not the whole of that land is land which the Authority are authorised to acquire compulsorily under this Act.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) above, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Authority may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal:

Provided that the determination of the tribunal shall not be deemed to be made so long as—

- (a) the time for requiring the tribunal to state a case with respect thereto has not expired and any proceedings on the points raised by a case so stated have not been concluded; or
- (b) any proceedings on appeal from any decision on the points raised by a case so stated have not been concluded.

(8) (a) Where a person is under this section required to sell part only of a house, building or factory, or of land consisting of a house together with any park or garden belonging thereto, the Authority shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

(b) Any dispute as to a person's entitlement to compensation under this section or as to the amount of the compensation shall be determined by the tribunal.

23.—(1) The Authority may, instead of acquiring any land under section 21 (Power to acquire lands) of this Act, acquire compulsorily or by agreement such new rights as they require over or in the land for any purpose for which they are authorised to acquire the land.

(2) The Authority may also acquire compulsorily or by agreement such new rights as they may require over or in such of the lands delineated on the deposited plans and described in the deposited book of reference as are situated outside the limits of deviation shown on the deposited plans for the purpose of flooding the land or flooding the land to a greater depth or for a longer period than it would have been flooded but for the construction and operation of the works.

(3) Any new right acquired pursuant to this section shall, as respects the burden of the right, run with the land and be enforceable by the Authority against the estate and interest of every person to or for whom compensation or (where the new right is acquired by agreement) the agreed purchase price is paid and all persons deriving title by, through or under that person without any limit of time and as though, as respects the benefit of the right—

- (a) the Authority had at all material times been the absolute owners in possession of ascertained land adjacent to the land subject to the burden of the right and capable of being benefited thereby; and
- (b) the right was created or imposed by a grant or covenant expressed to be for the benefit of that adjacent land.

(4) Any new right acquired under this section, whether compulsorily or by agreement, shall be a local land charge.

(5) (a) The Authority may give notice to treat in respect of any such new right, describing the nature thereof; and the Act of 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory acquisition of new rights under subsection (1) above as they apply to the compulsory acquisition of land so that, in appropriate contexts, references in that Act to land are read as referring, or as including references, to the new rights or to land over or in which the new rights are or are to be exercisable, according to the requirements of the particular context.

(b) Without prejudice to the generality of paragraph (a) above, in relation to the purchase of new rights in pursuance of subsection (1) above—

- (i) Part I of the Act of 1965 shall have effect with the modifications specified in Schedule 2 to this Act;
- (ii) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

(c) A notice to treat given under this section shall be endorsed with notice of the effect of section 8 of the Act of 1965 as applied by paragraph 2 of Schedule 2 to this Act.

(6) The Authority may, with or without consideration, release either wholly or partly any new right acquired under this section.

(7) Where the Authority have acquired only a new right over or in any land under this section they shall not be required or, except by agreement or during the execution of the works authorised by this Act, entitled to fence off or sever that land from the adjoining land.

24.—(1) Subject to the provisions of this Act, the Authority may, for the purposes of the works, enter upon and use so much of the bed or banks of any watercourse as is within the limits of deviation of any of the works shown on

PART III
—cont.
Power to acquire
new rights.

Power to use bed
and banks of
watercourses.

PART III
—cont.

the deposited plans and as may be required for those purposes, and they may also, for the purposes of executing and placing temporary works and conveniences in connection with the works, occupy and use temporarily so much of such bed and banks within the said limits as may be required for those purposes or any of them.

(2) The Authority shall, not less than 7 days before entering upon and using the bed or banks of any watercourse as aforesaid, give notice of their intention to the occupier of the land comprising such bed or banks and shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise by the Authority of the powers conferred by this section, and any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

Correction of
errors in
deposited plans
and book of
reference.

25.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Authority after giving not less than 10 days' notice to the owner, lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the chief executive of the county council, and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the Standing Orders of the Houses of Parliament or who has the custody of any copy so deposited, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Authority to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

Disregard of
recent
improvements
and interests.

26. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land or new rights under this Act, the tribunal shall not take into account—

- (a) any interest in land; or
- (b) any enhancement of the value of any interest in land by reason of any building erected, works executed, or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was, at the time of the erecting, executing or making of the building, works, improvement or alteration, directly or indirectly concerned;

if the tribunal are satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

27.—(1) All private rights of way over any land which may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land, whether compulsorily or by agreement, or on the entry on the land in pursuance of subsection (1) of section 11 of the Act of 1965, as applied by this Act, whichever is the sooner.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Authority compensation, to be determined, in case of dispute, in accordance with the provisions of the Act of 1961.

28.—(1) Any person empowered by the Act of 1965, as applied by this Act, to sell and convey or release lands may, if he thinks fit, subject to the provisions of the Act of 1965, grant to the Authority any new rights required for the purposes of this Act over or in the lands, not being new rights of water in which some person other than the grantor has an interest.

(2) The provisions of the Act of 1965 with respect to lands and rentcharges, so far as they are applicable, shall extend and apply to any such grant and to any such new rights as aforesaid.

29. The powers of the Authority to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land which may be acquired under this Act.

30.—(1) The Authority may enter into and carry into effect agreements with any person being the owner of, or interested in, any land adjoining any portion of the works, or of land which may be acquired by the Authority or made subject to a new right under this Act, with respect to the sale by the Authority to him (subject to such reservations, restrictions or other provisions as to the Authority seem fit) of any land not required for the works.

(2) The Authority may accept as satisfaction for the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Authority for the purposes of this Act or any new rights so required.

31.—(1) The Authority may enter into, and carry into effect, an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act by the Authority or over or in which new rights are or are to be acquired under this Act with respect to his reinstatement.

(2) Any such agreement may provide for the exchange of land; and for that purpose the Authority may pay or receive money for equality of exchange.

32.—(1) The powers of the Authority for the compulsory acquisition of land and new rights under this Act shall not be exercised after 31st December 1991.

(2) The power to acquire compulsorily any land or new rights shall for the purposes of this section be deemed to have been exercised if before 31st December 1991, notice to treat has been served in respect of that land or those new rights.

33. It is hereby declared that the works, being works to be constructed by the Authority in the performance of their land drainage functions, are drainage works and that in constructing those works and in the exercise of the other powers of this Act the Authority shall have, in addition to the powers of this Act, all such powers as are conferred on them by or under section 17 of the Act of 1976 in relation to drainage works.

PART III
—cont.

Extinction of
private rights of
way.

Grant of new
rights by persons
under disability.

Provision of
substituted sites.

Agreements with
adjoining owners.

Power to reinstate
owners or
occupiers of
property.

Period of
compulsory
purchase of land
and new rights.

Application of
enactments
relating to land
drainage.

PART III
—*cont.*
Grants by
Minister towards
expenditure of
Authority.

34. In subsection (6) of section 90 of the Act of 1976—

(a) the reference to functions under paragraph (b) or paragraph (c) of subsection (1) of section 17 of the Act of 1976 shall include a reference to functions of a similar nature under this Act; and

(b) in relation to that subsection as it applies by virtue of paragraph (a) above—

(i) the reference in paragraph (a) to sections 65 and 66 of the Act of 1963 shall be construed as including a reference to Part III of this Act; and

(ii) the reference in paragraph (c) to section 17 (5) of the Act of 1976 shall be construed as including a reference to section 5 (Subsidiary works), section 14 (Power to Authority to improve and regulate flow of watercourses), section 15 (Discharge of water into streams), section 16 (Agreements with owners of land and others for execution of works) and section 24 (Power to use bed and banks of watercourses) of this Act.

Service of
documents.

35. Section 120 of the Act of 1963 shall apply to the service of documents required or authorised by this Act to be given to or served on any person as it applies to the service of documents required or authorised by that Act to be given to or served on any person.

PART IV

MISCELLANEOUS

Amendment of
section 47 of
Southern Water
Authority Act
1982.
1982 c. xxii.

36. Subsection (1) (a) of section 47 (Undertakings and agreements binding successive owners) of the Southern Water Authority Act 1982 shall be amended by the substitution for the words “a legal estate” of the words “an interest”, by the substitution for the words “defining that land as land the legal estate in which at the date of execution is vested in the owner” of the words “specifying the land in connection with which it is given or made” and by the insertion, after the word “title” of the words “to that interest”.

Enforcement of
covenants.

37.—(1) This section applies to any covenant obtained by the Authority under section 23 (Power to acquire new rights) of this Act or obtained by the Authority through an undertaking or agreement made after the passing of this Act and pursuant to section 47 (Undertakings and agreements binding successive owners) of the Southern Water Authority Act 1982.

(2) Without prejudice to any other method of enforcement of a covenant to which this section applies if there is a breach of the covenant in relation to any of the land to which the covenant relates, then, subject to subsection (3) below, the Authority may—

(a) enter on the land concerned and carry out the works or do anything which the covenant requires to be carried out or done or remedy anything which has been done and which the covenant required not to be done; and

(b) recover from any person against whom the covenant is enforceable any expenses incurred by the Authority in exercise of their powers under this subsection.

(3) Before the Authority exercise their powers under subsection (2) (a) above they shall except in an emergency give not less than 21 days' notice of their intention to do so to any person—

- (a) who has for the time being an interest in the land on or in relation to which the works are to be carried out or other thing is to be done; and
- (b) against whom the covenant is enforceable.

PART IV
—cont.

(4) If a person against whom a covenant is enforceable requests the Authority to supply him with a copy of the covenant, it shall be their duty to do so free of charge.

(5) The Public Health Act 1936 shall have effect as if any reference to that Act in— 1936 c. 49.

- (a) section 283 of that Act (notices to be in writing; forms of notices, etc.);
 - (b) section 288 of that Act (penalty for obstructing execution of Act); and
 - (c) section 291 of that Act (certain expenses recoverable from owners to be a charge on the premises; power to order payment by instalments);
- included a reference to subsections (1) to (4) above and as if any reference in those sections of that Act—

- (i) to a local authority were a reference to the Authority; and
- (ii) to the owner of the premises were a reference to the holder of an interest in land.

38.—(1) In this section “the bridge” means the opening bridge over the river Ouse in the county of East Sussex, being the bridge referred to in section 53 (Trustees to maintain bridge at Southease) of the Newhaven Harbour and Ouse Lower Navigation Act 1847.

As to Southease
bridge, East
Sussex.
1847 c. ix.

(2) Notwithstanding anything in the said section 53 or in any other enactment, the Authority shall not be required to maintain the bridge as capable of being drawn up or otherwise opened for the passage of vessels.

39. As from 1st April 1989 the definition of “the Medway navigation” in section 32 (Interpretation of Part IV) of the Southern Water Authority Act 1982 shall be amended—

As to Medway
navigation.
1982 c. xxii.

- (a) by the insertion after the word “means” of “(a)”;
- (b) by the addition at the end of the definition of the following words:—
“and
(b) any lake, pit, pond, marina or other substantially enclosed water adjacent to that navigation and from which any vessel may be navigated (whether or not through a lock or other similar work) into the navigation;”.

40.—(1) In this section, “the lock” means the lock on the river Medway in the borough of Maidstone known as Allington Lock.

Use of Allington
Lock.

(2) The Authority may from time to time designate the times during which the lock may be used for the passage of vessels provided that, for the purposes of this section, the Authority shall not designate any lesser time in any day than so much of any period commencing three hours before and expiring two hours after high water at the lock as falls between—

- (a) 0700 hours and sunset on any day between 1st March and 31st October in any year; and
- (b) 0800 hours and 1600 hours on any other day.

(3) Notwithstanding anything in any other enactment or rule of law, where the Authority designate under this section the time during which the lock may be used for the passage of vessels on any day no person shall be entitled to use the lock for the passage of any vessel on that day outside that time unless he

PART IV
—cont.

has given the lock-keeper or other person for the time being authorised by the Authority so to act not less than 24 hours' notice such notice to be given between the times designated under subsection (2) above.

(4) During such times as the lock is not available for the passage of vessels by reason of a designation under this section and is not otherwise being used the Authority shall allow vessels downstream of the lock and seeking passage upstream through the lock to enter and moor therein.

Penalties for
byelaw offences.

1911 c. xxiii.

41. After the passing of this Act, any person contravening a byelaw made by the Authority or their predecessors under section 136 (Conservators may make byelaws for the regulation of the river) of the Upper Medway Navigation and Conservancy Act 1911 shall be liable to a fine of an amount not exceeding level 3 on the standard scale and in the case of a continuing offence to a daily fine not exceeding one-tenth of level 3.

PART V

GENERAL

For protection of
gas, electricity
and water
undertakers.

1950 c. 39.

42. For the protection of the undertakers the provisions of this section shall, unless otherwise agreed in writing between the Authority and the undertakers and except in any case in which the mutual obligations of the Authority and the undertakers are determined by Part III of the Public Utilities Street Works Act 1950, apply and have effect—

(1) In this section unless the subject or context otherwise requires—

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means—

1882 c. 56.

(a) in the case of electricity undertakers, electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by or lawfully laid or erected by such undertakers; or

(b) in the case of gas or water undertakers any mains, pipes or other apparatus belonging to the undertakers or for the maintenance of which they are responsible;

and includes any structure for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under, over, across, along or upon;

“plan” includes a section and description;

“specified work” means any work or thing done under powers conferred by this Act;

1986 c. 44.

“the undertakers” means a public gas supplier within the meaning of Part I of the Gas Act 1986, the Central Electricity Generating Board, the South Eastern Electricity Board and the Mid Kent Water Company or any of them, as the case may be:

(2) Notwithstanding anything in this Act or shown on the deposited plans, the Authority shall not, under the powers of this Act, acquire any apparatus otherwise than by agreement:

(3) The powers conferred on the Authority by paragraph (i) of subsection (1) of section 5 (Subsidiary works) of this Act to alter apparatus shall not be exercised in respect of any apparatus otherwise than in accordance with the provisions of this section:

- (4) If the Authority in the exercise of the powers of this Act acquire any interest in or use any land in which any apparatus is placed, that apparatus shall not be removed nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in that land be extinguished until adequate alternative apparatus has been laid or constructed and is in operation to the reasonable satisfaction of the undertakers:
- (5) (a) If the Authority, for the purpose of the execution of any specified work, require the removal of any apparatus, they shall give to the undertakers written notice of such requirement with a plan of the proposed work, and if it is agreed between the Authority and the undertakers or, in default of agreement, determined by arbitration that the removal of the apparatus is reasonably required and that it should be removed the following provisions of this paragraph shall have effect;
- (b) If it is agreed or determined by arbitration in accordance with subparagraph (a) of this paragraph that any apparatus should be removed or if in consequence of the execution of any specified work the undertakers shall reasonably require to remove any apparatus, the Authority shall, if practicable, afford to the undertakers the necessary facilities and rights for the laying or construction of adequate alternative apparatus in other lands of the Authority and thereafter for the maintenance, repair, renewal and inspection of such apparatus:
- Provided that if the alternative apparatus or any part thereof is to be laid or constructed elsewhere than in other lands of the Authority and the Authority are unable to afford such facilities and rights as aforesaid in the land in which the alternative apparatus or such part thereof is to be laid or constructed the undertakers shall on receipt of a written notice to that effect from the Authority, forthwith use their best endeavours to obtain the necessary facilities and rights:
- (6) (a) Any alternative apparatus to be laid or constructed in lands of the Authority in pursuance of paragraph (5) of this section shall be laid or constructed in such manner and in such line or situation as may be agreed between the undertakers and the Authority or, in default of agreement, settled by arbitration;
- (b) The undertakers shall, after the manner of laying or construction and the line and situation of any alternative apparatus has been agreed, or settled by arbitration as aforesaid, and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (5) of this section, proceed with all reasonable dispatch to lay or construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required to be removed under the provisions of this section and, in default, the Authority may remove the apparatus:
- (7) Notwithstanding anything in paragraph (6) of this section, if the Authority give notice in writing to the undertakers that they desire themselves to execute any part of the work necessary in connection with the laying or construction of the alternative apparatus in, or the removal of the apparatus required to be removed from, any lands of the Authority, such work, instead of being executed by the undertakers, shall be executed by the Authority with all reasonable dispatch under the superintendence, if given, and to the reasonable satisfaction of the undertakers:

PART V
—cont.

Provided that nothing in this paragraph shall authorise the Authority to execute the actual placing, erection, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around the apparatus extending (where the apparatus is laid in a trench) within 300 millimetres (12 inches) above the apparatus:

- (8) Where in accordance with the provisions of this section the Authority afford to the undertakers facilities and rights for the laying or construction, maintenance, repair, renewal and inspection in lands of the Authority of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Authority and the undertakers, or, in default of agreement, determined by arbitration:

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed across or through a specified work the arbitrator shall—

(i) give effect to all reasonable requirements of the Authority for ensuring the safety and efficient operation of the specified work and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such work; and

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the particular case, give effect to any terms and conditions applicable to the apparatus laid or constructed through the lands of the Authority for which the alternative apparatus is to be substituted;

(b) if the facilities and rights to be afforded by the Authority in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted, are, in the opinion of the arbitrator, less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation by the Authority to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (9) (a) Not less than 28 days before commencing to execute any specified work which is near to, or is likely to affect, any apparatus the removal of which has not been required by the Authority under paragraph (5) of this section, the Authority shall submit to the undertakers a plan of the work to be executed;

- (b) Such work shall be executed only in accordance with the plan submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the undertakers shall be entitled by their officer to watch and inspect the execution of such work:

Provided that—

(i) if the undertakers, within 14 days after the submission to them of any such plan, shall, in consequence of the work proposed by the Authority, reasonably require the removal of any apparatus

and give written notice to the Authority of such requirement the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Authority under paragraph (5) thereof; and

(ii) nothing in this sub-paragraph shall preclude the Authority from submitting at any time, or from time to time, but in no case less than 28 days before commencing the execution of any such work, a new plan in lieu of the plan previously submitted and thereupon the provisions of this paragraph shall apply to and in respect of such new plan;

- (c) The Authority shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but, in such a case, they shall give to the undertakers notice and a plan of the work as soon as reasonably practicable and thereafter shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:
- (10) Where any highway in which any apparatus is situated has been stopped up by the Authority under the powers of section 9 (Stopping up and diversion of footpaths) of this Act, the undertakers shall, notwithstanding such stopping up, continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up has ceased to be a highway (not being apparatus rendered derelict or unnecessary) as they would have if it had remained a highway and no such rights shall be extinguished by virtue of the said section 9 but nothing in this paragraph shall prejudice or affect any right of the Authority or of the undertakers to require removal of such apparatus under this section:
- (11) If in consequence of the exercise of the powers of this Act the access to any apparatus is materially obstructed, the Authority shall provide an alternative means of access to such apparatus:
- (12) The Authority shall repay to the undertakers the reasonable costs, charges and expenses incurred by the undertakers in or in connection with—
- (a) the removal and relaying or replacing, alteration or protection of any apparatus or the provision and construction of any new apparatus under any of the provisions of this section;
- (b) the cutting off of any apparatus from any other apparatus; and
- (c) any other work or thing reasonably necessary in consequence of the exercise by the Authority of any of the powers of this Act:

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 shall so far as applicable extend and apply to any payment to be made by the Authority under this paragraph as if the Authority were the promoting authority and works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3), and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 42 (For protection of gas, electricity and water undertakers) of the Southern Water Authority Act 1988":

1950 c. 39.

PART V
—cont.

(13) If by reason or in consequence of the execution, user or failure of any of the specified works, or any subsidence resulting from any of those works, any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal for the purposes of those works) or property of the undertakers or any interruption in the supply of gas, electricity or water, as the case may be, by or to the undertakers shall be caused, the Authority shall bear and pay the cost reasonably incurred by the undertakers in making good such damage, or in restoring the supply of gas, electricity or water and shall—

(a) make reasonable compensation to the undertakers for any loss sustained by them; and

(b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the undertakers; by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Authority with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of the undertakers or their contractors or workmen;

(ii) the undertakers shall give to the Authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Authority:

(14) The temporary stopping up or diversion of any road or footpath under the powers of section 10 (Temporary stoppage of watercourses, roads and footpaths) of this Act shall not prevent the undertakers from obtaining access to any apparatus nor prejudice or affect any right of the undertakers—

(a) to lay, erect, maintain, inspect, renew or remove any apparatus in the road or footpath; or

(b) for the purposes of such laying, erection, maintenance, inspection, renewal or removal to enter upon or break open that road or footpath:

(15) (a) Any difference arising between the Authority and the undertakers under this section shall be settled by arbitration;

(b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus and may, if he thinks fit, require the Authority to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with any purposes for which the apparatus is used.

For protection of
telecommunica-
tion apparatus.

43. Paragraph 23 of the telecommunications code shall apply to the execution of any works authorised by this Act as if the Authority were for that purpose a relevant undertaker and the works were undertaker's works within the meaning of that paragraph.

For protection of
British Railways
Board.

44. For the protection of the British Railways Board (in this section referred to as "the railways board") the following provisions shall unless otherwise agreed in writing between the Authority and the railways board apply and have effect:—

(1) In this section—

“construction” includes execution, placing and alteration and “construct” and “constructed” have corresponding meanings;

“the engineer” means an engineer to be appointed by the railways board;

“plans” includes sections, drawings, specifications, soil reports, calculations and descriptions (including descriptions of methods of construction);

“railway property” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible and includes any land held or used by the railways board for the purposes of such railway or works;

“specified works” means so much of the works authorised by this Act (whether temporary or permanent) as may be situated upon, across, under or over or within 15 metres of railway property:

(2) The Authority shall not under the powers of this Act acquire compulsorily any railway property but they may in accordance with the provisions of section 23 (Power to acquire new rights) of this Act acquire such new rights in any railway property delineated on the deposited plans as they may reasonably require:

(3) The Authority shall before commencing the construction of the specified works furnish to the railways board proper and sufficient plans thereof for the reasonable approval of the engineer and shall not commence the specified works until plans thereof have been approved in writing by the engineer or settled by arbitration:

Provided that if within 56 days after such plans have been furnished to the railways board the engineer shall not have intimated his disapproval thereof and the grounds of his disapproval he shall be deemed to have approved the same:

(4) If within 56 days after such plans have been furnished to the railways board, the railways board shall give notice to the authority that the railways board desire themselves to construct any part of the specified works which in the opinion of the engineer will or may affect the stability of railway property then, if the Authority desire such part of the specified works to be constructed, the railways board shall construct the same with all reasonable dispatch on behalf of and to the reasonable satisfaction of the Authority in accordance with plans approved or deemed to be approved or settled as aforesaid:

(5) Upon signifying his approval or disapproval of the plans the engineer may specify any additional protective works (whether temporary or permanent) which in his opinion should be carried out before the commencement of the specified works to ensure the safety or stability of railway property and such protective works as may be reasonably necessary for those purposes shall be constructed by the railways board or by the Authority, if the railways board so desire, with all reasonable dispatch and the Authority shall not commence the construction of Work No. 1 until the engineer shall have notified the Authority that Works Nos. 7 and 8 and any additional protective works have been completed to his reasonable satisfaction:

(6) The Authority shall give to the railways board 28 days' notice in writing of their intention to commence the construction of any of the specified works and, except in emergency (when they shall give such

PART V
—cont.

notice as may be reasonably practicable), also of their intention to carry out any works for the repair or maintenance of the specified works in so far as such works of repair or maintenance affect or interfere with railway property:

- (7) The specified works shall, when commenced, be carried out—
- (a) with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid;
 - (b) under the supervision (if given) and to the reasonable satisfaction of the engineer;
 - (c) in such manner as to cause as little damage to railway property as may be; and
 - (d) so far as is reasonably practicable, so as not to interfere with or obstruct the free, uninterrupted and safe user of any railway of the railways board or the traffic thereon and the use by passengers of railway property;
- and, if any damage to railway property or any such interference or obstruction shall be caused or take place, the Authority shall, notwithstanding any such approval as aforesaid, make good such damage and shall on demand pay to the railways board all reasonable expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage, interference or obstruction:
- (8) Nothing in paragraph (7) above shall impose any liability on the Authority with respect to any damage, costs, expenses or loss attributable to the wrongful act, neglect or default of the railways board or their servants, contractors or agents:
- (9) The Authority shall—
- (a) at all times afford reasonable facilities to the engineer for access to the specified works during their construction;
 - (b) ensure access for the engineer at all reasonable times to all working sites, depots and premises at which materials to be employed in the construction of the specified works are being made, constructed or assembled;
 - (c) supply the engineer with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:
- (10) The railways board shall at all times afford reasonable facilities to the Authority and their agents for access to any works carried out by the railways board under this section during their construction and shall supply the Authority with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (11) If by reason of and in consequence of the specified works any alterations or additions, either permanent or temporary, to railway property shall be reasonably necessary during the construction of the specified works or during a period of 12 months after the completion thereof and the railways board give to the Authority reasonable notice of their intention to carry out such alterations or additions the Authority shall pay to the railways board on demand the reasonable cost thereof including, in respect of permanent alterations and additions, a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing any such alterations or additions:

- (12) The Authority shall repay to the railways board all costs, charges and expenses reasonably incurred by the railways board—

(a) in constructing any part of the specified works on behalf of the Authority as provided by paragraph (4) of this section or in constructing any protective works under the provisions of paragraph (5) of this section including, in respect of any permanent protective works, a capitalised sum representing the cost which may be expected to be reasonably incurred by the railways board in excess of the cost that would have been incurred but for the construction of the specified works in maintaining and renewing those works assuming those works to be properly maintained by the railways board;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing so far as may be all interference, obstruction, danger or accident arising from the construction of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction of the specified works and which may in the opinion of the engineer be required to be imposed or from the substitution, suspension or diversion of services which may be necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the specified works being lighting made reasonably necessary as a result of the specified works;

(e) in respect of the approval by the engineer of plans submitted by the Authority and the supervision by him of the construction of the specified works:

- (13) The Authority shall be responsible for and make good to the railways board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the railways board—

(a) by reason of the construction of the specified works; or

(b) by reason of any act or omission of the Authority or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the specified works;

and the Authority shall effectively indemnify and hold harmless the railways board from and against all claims and demands arising out of or in connection with the construction of the specified works or any such act or omission as aforesaid and the fact that any act or thing may have been done by the railways board on behalf of the Authority or in accordance with plans approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of the railways board or of any person in their employ or of their contractors or agents) excuse the Authority from the liability under the provisions of this section:

Provided that the railways board shall give to the Authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Authority:

PART V
—cont.

- (14) Any difference arising between the Authority and the railways board under this section (other than a difference as to the meaning or construction of this section) shall be referred to and settled by arbitration.

Arbitration.

45. Where under this Act any dispute or difference is to be determined by arbitration, then, unless otherwise provided, such dispute or difference shall be referred to, and determined by, a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Planning
permission.
S.I. 1988/1813.

46. In their application to development authorised by Part II (Works) of this Act, Article 3 of, and Part 11 in Schedule 2 to, the Town and Country Planning General Development Order 1988 shall have effect as if the authority to develop given by this Act in respect of the works were limited to such development begun within 10 years after the passing of this Act.

Crown rights.

47. Nothing in this Act affects prejudicially any estate, right, power, privilege, authority or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Authority to take, use, enter upon or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those Commissioners; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

SCHEDULES

Section 9.

SCHEDULE 1

FOOTPATHS TO BE DIVERTED

(1) Footpath No. on map prepared by county council under section 32 of the National Parks and Access to the Countryside Act 1949	(2) Parish	(3) Extent of stopping up and diversion
AE437	Smeeth and Aldington and Bonnington	Stop up and discontinue footpath between points A and B, E and F and G and H and substitute there- for new footpaths or diversions between those points and over Works Nos. 1, 8 and 7 respectively.
AE435	Smeeth	Stop up and discontinue footpath between points J and H and sub- stitute therefor a new footpath or diversion between those points over the western end and thence adjacent to the toe of Work No. 7.
AE434	Smeeth	Stop up and discontinue footpath between points K and L or so much of that footpath as is rendered unnecessary by the new footpath or diversion between points J and H.
AE456	Aldington and Bonnington	Stop up and discontinue footpath between points C and D and sub- stitute therefor a new footpath or diversion between those points and over Work No. 1.
AW168	Hothfield	Stop up and discontinue footpath between points M and N and sub- stitute therefor a new footpath or diversion between those points and over Work No. 12.
AW171	Hothfield and Great Chart with Singleton	Stop up and discontinue footpath between points P and Q and R and S and substitute therefor new foot- paths or diversions between those points and over Works Nos. 14 and 12 respectively.
AW172	Hothfield	Stop up and discontinue footpath between points T and U and sub- stitute therefor a new footpath or diversion between points V and U.

1949 c. 97.

Section 23.

SCHEDULE 2

ADAPTATION OF PART I OF THE ACT OF 1965 IN CONNECTION WITH
PURCHASE OF EASEMENTS OR RIGHTS

1. In the Act of 1965 (hereafter in this Schedule referred to as "the Act") for section 7 (which relates to compensation) there shall be substituted the following:—

"7.—(1) In assessing the compensation to be paid by the Authority under this Act regard shall be had not only to the extent, if any, to which the value of the land over or in which the right is purchased is depreciated by the purchase but also to the damage, if any, to be sustained by the owner of the land by reason of injurious affection of other land of the owner by the exercise of the right.

1973 c. 26.

(2) The modifications subject to which subsection (1) of section 44 of the Land Compensation Act 1973 is to have effect, as applied by subsection (2) of that section to compensation for injurious affection under this section, are that for the words 'land is acquired or taken' there shall be substituted the words 'a right over or in land is purchased' and for the words 'acquired or taken from him' there shall be substituted the words 'over or in which the right is exercisable'."

2. For section 8 (1) of the Act (which relates to cases in which a vendor cannot be required to sell part only of a building or garden) there shall be substituted the following:—

"8.—(1) Where in consequence of the service on a person in pursuance of section 5 of this Act of a notice to treat in respect of a right over or in land consisting of a house, building or manufactory or of a park or garden belonging to a house (hereafter in this subsection referred to as 'the relevant land')—

(a) a question of disputed compensation in respect of the purchase of the right would apart from this section fall to be determined by the Lands Tribunal (hereafter in this section referred to as 'the Tribunal'); and

(b) before the Tribunal has determined that question the person satisfies the Tribunal that he has an interest which he is able and willing to sell in the whole of the relevant land and—

(i) where that land consists of a house, building or manufactory, that the right cannot be purchased without material detriment to that land; or

(ii) where that land consists of such a park or garden, that the right cannot be purchased without seriously affecting the amenity or convenience of the house to which that land belongs;

the compulsory purchase order to which the notice to treat relates shall, in relation to that person, cease to authorise the purchase of the right and be deemed to authorise the purchase of that person's interest in the whole of the relevant land including, where the land consists of such a park or garden, the house to which it belongs, and the notice shall be deemed to have been served in respect of that interest on such date as the Tribunal directs.

(2) Any question as to the extent of the land in which a compulsory purchase order is deemed to authorise the purchase of an interest by virtue of the preceding subsection shall be determined by the Tribunal.

(3) Where in consequence of a determination of the Tribunal that it is satisfied as mentioned in subsection (1) of this section a compulsory purchase order is deemed by virtue of that subsection to authorise the purchase of an interest in land, the Authority may, at any time within the period of six weeks beginning with the date of the determination, withdraw the notice to treat in consequence of which the determination

was made; but nothing in this subsection prejudices any other power of the Authority to withdraw the notice.

SCH. 2
—cont.

(4) The modifications subject to which subsection (1) of section 58 of the Land Compensation Act 1973 is to have effect, as applied by subsection (2) of that section to the duty of the Tribunal in determining whether it is satisfied as mentioned in subsection (1) of this section, are that at the beginning of paragraphs (a) and (b) there shall be inserted the words 'a right over or in', for the word 'severance' there shall be substituted the words 'right in or over the whole of the house, building or manufactory or of the house and the park or garden' and for the words 'part proposed' and 'part is' there shall be substituted respectively the words 'right proposed' and 'right is'."

1973 c. 26.

3. The following provisions of the Act (which state the effect of a deed poll executed in various circumstances where there is no conveyance by persons with interests in the land), namely—

section 9 (4) (failure of owners to convey);

paragraph 10 (3) of Schedule 1 (owners under incapacity);

paragraph 2 (3) of Schedule 2 (absent and untraced owners); and

paragraphs 2 (3) and 7 (2) of Schedule 4 (common land);

shall be so modified as to secure that, as against all persons for whose use and in respect whereof compensation has been paid over or paid into court and their successors in title, the new rights and the full benefit thereof shall vest absolutely in the Authority as if all such persons had executed the deed and created the new rights according to its terms.

4. Section 11 (powers of entry) of the Act shall be so modified as to secure that as from the date on which the Authority has served notice to treat in respect of any right, it has power, exercisable in the like circumstances and subject to the like conditions, to enter for the purpose of exercising that right (which shall be deemed for this purpose to have been created on the date of service of the notice); and sections 12 (penalty for unauthorised entry) and 13 (entry on sheriff's warrant in the event of obstruction) of the Act shall be modified correspondingly.

5. Section 20 (compensation for short term tenants) of the Act shall apply with the modifications necessary to secure that persons with such interests as are mentioned in that section are compensated in a manner corresponding to that in which they would be compensated on a compulsory acquisition of the interests but taking into account only the extent (if any) of such interference with such interests as is actually caused or likely to be caused, by the exercise of the right in question.

6. Section 22 (protection of acquiring authority's possession of land where by inadvertence an interest in the land has not been purchased) of the Act shall be so modified as to enable the Authority, in circumstances corresponding to those referred to in that section, to continue to be entitled to exercise the right in question, subject to compliance with that section as respects compensation.

7. Paragraph 2 (1) of Schedule 1 (power of owners to sell to the acquiring authority) to the Act shall be modified to empower all persons who are seised or possessed of or entitled to any of the land over which a right is required by the acquiring authority to grant that right to the authority and to enter all necessary agreements for the purpose.



Southern Water Authority Act 1988

CHAPTER xxxiii

ARRANGEMENT OF SECTIONS

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Section

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